

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1400

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO SALARIES OF STATE ELECTIVE OFFICERS; AMENDING SECTION 59-501, IDAHO CODE, TO REVISE THE SALARIES OF STATE ELECTIVE OFFICERS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 59-501, Idaho Code, be, and the same is hereby amended to read as follows:

59-501. SALARIES OF STATE ELECTIVE OFFICERS -- REGULAR PAYMENT -- TRAVELING EXPENSES -- FEES PROPERTY OF STATE. (1) The elected officers named in this subsection shall receive the following compensation for their services:

~~(a) Commencing on the first Monday in January 2023, until the first Monday in January 2027, the governor shall receive compensation of one hundred fifty-one thousand four hundred dollars (\$151,400) per annum;~~

(a) The governor shall receive compensation of:

(i) One hundred forty-three thousand eight hundred twenty dollars (\$143,820) per annum commencing on the first Monday in January 2027, until the first Monday in January 2028; and

(ii) One hundred fifty-one thousand four hundred dollars (\$151,400) per annum commencing on the first Monday in January 2028, until the first Monday in January 2031.

(b) The lieutenant governor shall receive thirty-five percent (35%) of the governor's compensation per annum;

(c) The secretary of state, state treasurer, and state superintendent of public instruction shall each receive eighty-five percent (85%) of the governor's compensation per annum;

~~(d) Commencing on the first Monday in January 2023, until the first Monday in January 2027, the attorney general shall receive compensation of one hundred forty-six thousand seven hundred thirty dollars (\$146,730) per annum; and~~

(d) The attorney general shall receive compensation of:

(i) One hundred thirty-nine thousand three hundred ninety-three dollars and fifty cents (\$139,393.50) per annum commencing on the first Monday in January 2027, until the first Monday in January 2028; and

(ii) One hundred forty-six thousand seven hundred thirty dollars (\$146,730) per annum commencing on the first Monday in January 2028, until the first Monday in January 2031.

(e) The state controller shall receive eighty-five percent (85%) of the governor's compensation per annum; said compensation to be audited by the legislative council.

1 (2) Such compensation shall be paid on regular pay periods as due out of
2 the state treasury and shall be in full for all services by said officers, re-
3 spectively, rendered in any official capacity or employment whatever during
4 their respective terms of office; but no increase in the rate of compensation
5 shall be made during the terms of such officers; provided however, that the
6 actual and necessary expenses of the governor, lieutenant governor, secre-
7 tary of state, attorney general, state controller, state treasurer, and su-
8 perintendent of public instruction, while traveling within the state or be-
9 tween points within the state in the performance of official duties, shall be
10 allowed and paid by the state; not, however, exceeding such sum as shall be
11 appropriated for such purpose.

12 (3) Actual and necessary subsistence expenses of the governor while
13 traveling in connection with the performance of official duties are hereby
14 expressly exempted from the provisions of sections 67-2007 and 67-2008,
15 Idaho Code (standard travel pay and allowance act of 1949).

16 (4) No officer named in this section shall receive, for the performance
17 of any official duty, any fee for his own use, but all fees fixed by law for
18 the performance of any official duty shall be collected in advance and de-
19 posited with the state treasurer to the credit of the state.

20 (5) It is the intent of the legislature that the salaries of elective
21 state officers be reduced by five percent (5%) for the period commencing on
22 the first Monday in January 2027 and ending on the first Monday in January
23 2028 as provided for in this section.

24 SECTION 2. An emergency existing therefor, which emergency is hereby
25 declared to exist, this act shall be in full force and effect on and after
26 July 1, 2026.